Act Number: 1/2007

# The Maldives Immigration Act

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| Introduction and Title | **1.** | (a) This Act lays down the rules for the departure and entry of Maldivian nationals, and entry, departure and deportation of foreign nationals.<br>(b) This Act shall be cited as "The Maldives Immigration Act". |
| Establishment of immigration offices | **2.** | (a) Amongst the sea ports and airports of the Maldives, every international sea port or airport must have an immigration office established.<br>(b) For the purposes of this Act, the ports referred to in subsection (a) shall be considered as authorised ports. |
| Entry and departure from an authorised port | **3.** | All persons shall enter the Maldives from an authorised port, unless a person is compelled to do otherwise, due to sudden natural causes, or an emergency which is beyond the control of the person. Persons departing from the Maldives shall also depart from an authorised port unless in cases of emergency as stated above. |
| Right of entry to Maldivian nationals | **4.** | (a) Every Maldivian national has the right of entry to the Maldives from any destination.<br>(b) Where the nationality of a person cannot be established, the burden of proving Maldivian nationality rests with the person concerned. |
| Right of departure to Maldivian nationals | **5.** | (a) With the exception of persons prohibited to leave the Maldives in relation to a court decision or a court order, or in relation to an order prohibiting a person to leave the Maldives by a government authority which has the power to make arrests pursuant to Section 6 of Act Number 4/68 (General Laws), every Maldivian national is entitled to depart from the Maldives, or |

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| | | stay abroad or live abroad.<br>(b) As stipulated in subsection (a), the government authority which has the power to make arrests pursuant to Section 6 of Act Number 4/68 (General Laws) may only issue an order prohibiting a person to leave the Maldives for a period of 7 days. A person may be prohibited from leaving the Maldives for a period longer than 7 days pursuant to a court decision or court order.<br>(c) A Maldivian national may depart from the Maldives provided that he/she has a valid passport. |
| Passport issuance | **6.** | (a) Passports shall be issued to any Maldivian national who requests for one. Passports shall also be renewed to any Maldivian national who requests for renewal.<br>(b) The Controller of Immigration and Emigration shall have the power to seize a person's passport pursuant to a court decision or court order, or an order issued by a government authority which has the power to make arrests pursuant to Section 6 of Act Number 4/68 (General Laws).<br>(c) As stipulated in subsection (b), a passport that has been seized pursuant to an order issued by a government authority which has the power to make arrests pursuant to Section 6 of Act Number 4/68 (General Laws) may only be held for a period of 7 days. A passport may be seized for a period longer than 7 days subject to a court decision or court order. |
| Entry and departure of foreign nationals | **7.** | (a) A foreign national may enter the Maldives if he/she can produce a valid passport and a valid permit of entry.<br>(b) A foreign national may leave the Maldives provided that he/she has a valid passport.<br>(c) Pursuant to subsection (a), a foreign national may |

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| | | enter the Maldives, unless as stated otherwise in the Regulations made under this Act, by filling a disembarkation form as specified in the Regulations and by submitting it with the passport to an immigration officer, and upon the leave to grant a permit of entry for the Maldives.<br>(d) A foreign national may depart from the Maldives, unless as stated otherwise in the Regulations made under this Act, by filling an embarkation form as specified in the Regulations, and submitting it with the passport to an immigration officer and upon the leave to grant departure. |
| Persons who do not have a permit of entry | **8.** | (a) Unless as stated otherwise in this Act, foreign nationals falling under the following categories shall not be granted leave to enter the Maldives.<br>(1) Persons who are unable to prove that they have sufficient funds for daily subsistence and accommodation for their period of stay in the Maldives or unable to prove employment or the existence of an employment contract in the Maldives.<br>(2) Persons afflicted with a dangerous contagious disease that may be of risk to public health, or considered to have any other dangerous diseases.<br>(3) Persons on the run from justice in another country.<br>(4) Persons who commit, or who may commit acts which disrupts the social or religious harmony of the Maldives.<br>(5) Persons who commit or who may commit acts against the Maldivian state.<br>(6) Persons who are members of terrorist organizations, or are suspected of any associations |

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| | | with terrorist organizations, or persons believed to be terrorists based on information received.<br>(7) Persons who may be considered to pose a threat to the safety and security of the nation.<br>(b) The Controller of Immigration and Emigration shall have the discretion to refuse entry into the Maldives the husband, or wife, or children, or any other persons who are related to any of the persons coming under a category stipulated in subsection (a), if they are foreign nationals.<br>(c) In addition to the categories specified in subsection (a), the Controller of Immigration and Emigration shall also have the discretion to refuse entry into the Maldives, should he/she deem fit, foreign nationals who are similar, or of a similar type, to the categories specified in that subsection, and foreign nationals, if allowed, would be in contravention to the spirit of the categories in the subsection aforesaid. |
| Permits to remain in the Maldives | **9.** | (a) For the purposes of this Act, permits to remain in the Maldives shall be divided into the following eight types.<br>(1) Tourist Visa<br>(2) Diplomatic Visa<br>(3) Student Visa<br>(4) Business Visa<br>(5) Dependant Visa<br>(6) Work Visa<br>(7) Resident Visa<br>(8) Special Visa<br>(b) The permits specified in subsection (a) are subject to the Regulations made under this Act. |
| Tourist visa | **10.** | (a) A tourist visa is the permit to remain in the Maldives granted in accordance with subsections (b) and (c) of |

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| | | this section to a visiting foreign national, who do not have the intention to be employed or work to earn any incomes in the Maldives.<br>(b) Pursuant to subsection (a), a foreign national visiting the Maldives may remain in the Maldives for a period not exceeding 30 days from the date of entry of that visit, without the payment of any fees.<br>(c) The Controller of Immigration and Emigration shall have the discretion to grant leave to a foreign national entering the Maldives pursuant to subsection (a), to remain in the Maldives for a period not exceeding 90 days from the date of entry of that visit to the Maldives, after the fee specified in the Annex of this Act has been paid. |
| Diplomatic visa | **11.** | A diplomatic visa is the permit to remain in the Maldives for a specific period of time granted to a foreign national, whom the Government of the Maldives considers to be entitled to diplomatic immunity pursuant to an international or regional convention that the Maldives is party to, or an international or regional agreement that the Maldives is party to, or qualifies for such immunity pursuant to international rules. |
| Student visa | **12.** | A student visa is the permit to remain in the Maldives for a specific period of time, granted to a foreign national for the purposes of studying in the Maldives. |
| Business visa | **13.** | A business visa is the permit to remain in the Maldives for a specific period of time, granted to a foreign national visiting the Maldives not as an employed person in the Maldives, but for the purposes of doing a business or work that has been permitted and approved by the concerned Maldivian Government authority. |
| Dependant visa | **14.** | A dependant visa is the permit to remain in the Maldives granted to a foreign national who is the dependant |

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| | | husband, or wife, or child, of a foreign national granted a permit to remain in the Maldives under this Act, where the permit is granted as a dependant of that foreign national, and the permit granted to the guardian of a minor under the age of 18, who has been granted a student visa. |
| Work visa | **15.** | A work visa is the permit to remain in the Maldives for the duration of a work permit granted to a foreign national visiting the Maldives for the purpose of working, where a work permit has been obtained by that foreign national consistent with the regulations of the concerned Government authority. |
| Resident visa | **16.** | A resident visa is the permit to remain in the Maldives granted to a foreign national who is married to a Maldivian national consistent with the laws of the Maldives, and to a foreign national who has large investments for a business or work, where the necessary permit and approval from the concerned Government authority has been obtained by that foreign national. |
| Special visa | **17.** | A special visa is the permit granted to a foreign national visiting the Maldives, or already present in the Maldives for a period of time as specified and notified by the Government for any of the following purposes;<br>(a) Humanitarian work<br>(b) Where at the time of the expiry of the original visa, the foreign national had been subject to medical treatment, and for the purpose of continuing that medical treatment<br>(c) Where [the foreign national] has been involved in legal proceedings in order to seek a right, if it is imperative for that foreign national to remain in the Maldives until those legal proceedings are completed<br>(d) Where a Government authority feels that it is |

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| | | imperative for a foreign national whose visa has expired needs to remain in the Maldives<br>(e) Where Maldivians in connection with foreign nationals, or foreign nationals by themselves, organise social, economic and cultural programs, activities and events, for the purpose of participating in those programs, activities and events<br>(f) Employees of foreign diplomatic missions, and offices of international and regional organizations based in the Maldives, who do not have diplomatic immunity<br>(g) Children of Maldivian nationals' foreign spouses who are not citizens of the Maldives, and who are under the age of 18 for the purpose of staying in the Maldives. |
| Extending the permit to remain in the Maldives | **18.** | (a) A foreign national who has a permit to stay in the Maldives and would like to remain in the Maldives for a longer period than allowed in the permit, may apply for an extension of the permit. Upon the receipt of such an application, pursuant to the Regulations made under this Act, the Controller of Immigration and Emigration shall have the discretion to extend it.<br>(b) Pursuant to subsection (a), the Controller of Immigration and Emigration shall have the discretion to lay down conditions in extending the permit, or where the original permit to stay in the Maldives was granted and certain conditions were laid down, to make amendments to those conditions and to lay down additional conditions.<br>(c) In laying down the conditions, or making amendments to conditions that were previously laid down, or laying down additional conditions under subsection (b), the foreign national concerned must be informed in writing of the reasons as to why such conditions |

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| | | were laid down. |
| Multiple entry permits | **19.** | (a) With the exception of the visas in Section 9 (a) (1) and (8), when a permit is granted under any other visas, the Controller of Immigration and Emigration shall have the discretion to grant a multiple entry permit.<br>(b) If a foreign national who has been granted a multiple entry permit as stipulated in subsection (a), after the entry into the Maldives under that permit, leave the Maldives at any time for a period exceeding 30 days without the permission of the person in the Maldives responsible for that foreign national, the permit shall be revoked.<br>(c) Where a permit granted to a foreign national has been revoked as stipulated in subsection (b), the Controller of Immigration and Emigration shall have the discretion to lay down specific conditions, and where conditions were attached to the permit that was previously granted, to make amendments to those conditions or lay down additional conditions in granting a new permit. |
| Revocation of permit | **20.** | After a permit to remain in the Maldives has been granted, the Controller of Immigration and Emigration shall have the discretion to revoke that permit with or without notification, under any one of the following circumstances;<br>(a) In applying for a permit, false information was provided, or the documents submitted contain false information.<br>(b) The foreign national who was granted a permit comes under a category of people who are not allowed entry into the Maldives.<br>(c) The reason or circumstance for the granting of a permit is no longer valid |

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| | | (d) The foreign national who was granted a permit has violated any laws or regulations of the Maldives |
| Departure upon the revocation of a permit | **21.** | (a) Where a permit to remain in the Maldives has been granted to a foreign national and the permit has been revoked without any notice, the foreign national shall not remain in the Maldives for a period longer than one day from the date of revocation.<br>(b) Where a permit to remain in the Maldives has been granted to a foreign national and the permit has been revoked with notice, the foreign national shall not remain in the Maldives from the date of revocation.<br>(c) A foreign national remaining in the Maldives after the revocation of his permit to remain in the Maldives, or a foreign national remaining in the Maldives without any permits is strictly prohibited under this Act.<br>(d) This Act does not prevent the Controller of Immigration and Emigration making arrangements for accommodation of a foreign national whom, pursuant to subsection (c), is unable to depart immediately from the Maldives, and is compelled to remain in the Maldives. |
| Docking and departure of vessels coming to the Maldives | **22.** | (a) Except Foreign sea vessels compelled to arrive in the Maldives due to unforeseen natural circumstances and foreign sea vessels arriving the Maldives in the case of an emergency beyond the control of the vessel, all foreign vessels shall first dock at an authorized sea port. Such a vessel shall also depart from the Maldives from an authorized sea port.<br>(b) Except foreign aircrafts compelled to arrive in the Maldives due to unforeseen natural circumstances and foreign aircrafts arriving the Maldives in the case of an emergency beyond the control of the aircraft, all foreign aircrafts shall also land first at an authorized airport. Such an aircraft shall also depart from the Maldives from an authorized airport. |

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| Embarking and disembarking after immigration control | **23.** | With the exception of the following persons, the embarkation and disembarkation of persons in a sea or air vessel upon arrival to the Maldives is prohibited, until the Immigration officers complete the necessary procedures in relation to that vessel.<br>(a) The captain or pilot of the vessel<br>(b) A civil servant embarking or disembarking the vessel in his/her official capacity<br>(c) The owner, operator chartering the vessel, or the Maldivian agent of the vessel<br>(d) A concerned employee of an official authority of the country in which the vessel was registered<br>(e) An authorized person in connection with the docking/landing of the vessel<br>(f) A person requiring urgent medical service |
| Requirements for sea vessels | **24.** | (a) The following documents must be produced by a sea vessel arriving to the Maldives if the Immigration officers on board requires them in connection with his/her work;<br>(1) Crew and passenger list<br>(2) Official documents pertaining the identity of the crew and passengers<br>(3) Official documents relating to the vessel<br>(b) The captain of the vessel shall facilitate the interviewing of any particular crew member, or members, or any particular passenger or passengers, should an Immigration officer inspecting pursuant to subsection (a) require it.<br>(c) The captain of the vessel shall facilitate the inspection of the vessel should an Immigration officer, pursuant to subsection (a) request it, in order to inspect whether any persons who may be denied a permit to enter the Maldives are on board. |

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| Compliance of international conventions on transport by sea | **25.** | Section 24 of this Act does not prevent the compliance of international conventions on transport by sea, of which, the Maldives is Party to. |
| Requirements for aircrafts | **26.** | (a) Each and every aircraft arriving to the Maldives shall produce the following documents to the Immigration officers in charge;<br>(1) A complete list of all the crew members<br>(2) A complete list of all the passengers<br>(b) The captain of the aircraft shall facilitate for the individual interviewing of any particular passenger or crew member should an Immigration officer request it.<br>(c) The captain of the aircraft shall facilitate the inspection of the aircraft should an Immigration officer request it under subsection (a) in order to inspect whether any persons who may be denied a permit to enter the Maldives are on board. |
| Compliance of international conventions on transport by air | **27.** | Section 26 of this Act does not prevent the compliance of international conventions on transport by air, of which, the Maldives is Party to. |
| Providing complete information in interviews | **28.** | (a) Where an Immigration officer makes some queries to a crew member or passenger of any vessel in relation to subsection (b), truthful and complete information in connection to the query must be provided.<br>(b) The queries which an Immigration officer may make under subsection (a) to a crew member or passenger shall be in connection with the purpose of establishing the identity, nationality, occupation, last port of disembarkation, port of destination and whether or not the person in question falls under a category of persons to whom an entry permit may not be granted under this Act. |
| Denial of entry to persons who | **29.** | (a) The Controller of Immigration and Emigration shall |

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| do not qualify for entry permits | | have the authority to order the deportation of a foreign national who arrived in a vessel to the Maldives and who cannot be granted leave to enter the Maldives, in that same vessel or in another vessel under the same owner of the vessel he/she arrived in, or in another vessel arranged by the owner of the vessel he/she arrived in. The Controller of Immigration and Emigration shall also have the power to detain the foreign national at a place where the Controller of Immigration and Emigration deems fit.<br>(b) The vessel shall follow any orders as stipulated in subsection (a).<br>(c) The owner of the vessel in which the foreign national arrived, shall bear the expenses related to the foreign national's detention and/or deportation as stipulated in this section. |
| Responsibilities to be borne by Maldivians | **30.** | Persons in the Maldives dealing with foreign nationals shall not do any of the following;<br>(1) Engage a foreign national who does not have an entry permit or work visa in any form of employment.<br>(2) Accommodate anywhere a foreign national who does not have an entry permit. |
| Responsibilities to be borne by foreign nationals | **31.** | Every foreign national arriving in the Maldives shall take note of the following;<br>(1) To stay in the Maldives within the confines of the permit granted to him/her, or be subject to the conditions attached to the permit.<br>(2) To depart from the Maldives upon the expiry or the revocation of the permit. |
| Fees | **32.** | (a) Fees and amounts that shall be charged under this Act are specified in the Annex of this Act.<br>(b) The fees specified in the Annex of this Act shall be paid by the person responsible for the foreign |

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| | | national. Where a foreign national is in the Maldives independently out of his/her own accord, the fees shall be paid by that foreign national. |
| Offences and Penalties | **33.** | (a) It is an offence to act in contravention of this Act or act against the spirit of this Act defeating its purpose.<br>(b) Where an offence as stipulated in subsection (a) has been committed by a Maldivian national, the penalty for the offence shall be a fine not excessive of Ruffiya 50,000/-. In addition, the Controller of Immigration and Emigration shall have the discretion to confiscate his/her passport for a specified period.<br>(c) Where an offence as stipulated in subsection (a) has been committed by a foreign national, the penalty for the offence shall be a fine ranging between Ruffiya 15,000/- and Ruffiya 50,000/-. In addition, the Controller of Immigration and Emigration shall have the discretion to deport and prohibit him/her from entering the Maldives for a specified period. |
| Exceptions | **34.** | (a) The Controller of Immigration and Emigration shall have the discretion to exempt vessels with diplomatic immunity pursuant to international or regional conventions and agreements that the Maldives is Party to.<br>(b) This Act does not prevent foreign nationals of a country which the Maldives has a bilateral agreement with concerning the entry to the Maldives without the payment of a visa fee for a specified period of time, to enter the Maldives, as stipulated in that agreement. |
| Drafting Regulations and the implementation of this Act | **35.** | Drafting and implementing the Regulations for the purpose of implementing this Act, and implementing and monitoring the provisions of this Act shall be undertaken by the head of an authority as appointed by the President, in an authority specifically designated by the President for |

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| | | this purpose. |
| Acts repealed | **36.** | Upon the coming into force of this Act, Act Number 2/92 (The Act on Fees Chargeable for Foreign Nationals with a Resident Permit in the Maldives) shall be repealed. |
| Interpretation | **37.** | Unless as stated otherwise in this Act:<br><br>"Permit" shall mean the eight types of visas specified in Section 9 of this Act.<br><br>"Authorised port" shall mean airports and seaports with international transport and established immigration services.<br><br>"Foreign nationals" shall mean persons other than Maldivian nationals.<br><br>"Controller of Immigration and Emigration" shall mean the person appointed by the President to carry out the functions of the Controller of Immigration and Emigration as stated in this Act.<br><br>"Vessel" shall include sea vessels as well as air vessels.<br><br>"All persons" shall include Maldivians and foreign nationals.<br><br>"Embarkation form" shall mean the form that contains information of foreign nationals filled by them on their departure from the Maldives and submitted to the Immigration officers pursuant to this Act.<br><br>"Immigration officers" shall mean employees in an authority designated by the President to implement the |

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| | | provisions of this Act, or in another government authority, especially employed to enforce the provisions of this Act.<br><br>"Immigration offices" shall mean the facilities established at sea ports and airports for Immigration officers to implement the provisions of this Act.<br><br>"Entry" shall mean a person transiting through the Immigration office based at the port where the vessel in which he/she arrived to the Maldives had docked or landed, after the completion of the procedures at that office. Arrival to the Maldives shall not be regarded as entry to the Maldives.<br><br>"Owner" shall include the owner of the vessel, the operator chartering the vessel, agents of the vessel, and the master or captain of the vessel.<br><br>"Visa" shall mean the permit granted under Section 9 of this Act.<br><br>"Disembarkation form" shall mean the form that contains information of foreign nationals filled by them on their arrival to the Maldives and submitted to the Immigration officers pursuant to this Act.<br><br>"Passport" shall mean an official document granted by a competent legal authority for international travelling that states the nationality and general information of a person, as well as include a photo of that person. This interpretation shall also include temporary alternative documents issued instead of passports. |

## Annex

The following fees, as stipulated in Section 32 of this Act, shall be applicable to the types of visas as specified in Section 9 of this Act.

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| Tourist Visa | For the permit as stipulated in Section 10 (c) of this Act, Ruffiya 750/- for every three months or for part of the three months as a visa fee. |
| Student Visa | Ruffiya 300/- for every three months or part of the three months. |
| Business Visa | Ruffiya 750/- for every three months or part of the three months. |
| Dependant Visa | Ruffiya 750/- for every three months or part of the three months. |

Amongst persons granted a special visa, for persons specified in Section 17 (b), (c) and (e) Ruffiya 750/- for every three months or part of the three months.

For persons who apply for a work visa, a work visa may only be granted if a sum of Ruffiya 250/- per month has been paid to an authority specified by the Government.